EXHIBIT 29

PROCUREMENT THRESHOLDS

ORANGE COUNTY STANDARD PROCUREMENT THRESHOLDS

I. **Small Purchases** (up to $10,000): Purchases up to $10,000 procured on the open market with or without competition. However, every attempt shall be made to secure such purchases from certified M/WBE vendors.

II. **Informal Quotes** (greater than $10,000 - $150,000*): Purchases exceeding $10,000 to $150,000 are procured via soliciting a minimum of three (3) written quotes from selected vendors, one of which should be a certified M/WBE vendor, if available.

III. **Formal Solicitations (Invitation for Bids, Request for Proposals)** (greater than $150,000): All requirements exceeding $150,000 are acquired through this process, with the exception of sole source and emergency procurements, as defined in the Procurement Procedures Manual.

** **Note:** Quotations solicited at the Department/Division level shall not exceed $150,000 unless a Sole Source or a time sensitive emergency applies. The Procurement Division reserves the right to solicit or re-solicit all informal requirements to ensure selections are in the County's best interest.*

FEDERAL PROCUREMENT THRESHOLDS

I. **Micro Purchases** (up to $10,000): Purchases up to $10,000 are procured on the open market with or without competition. To the extent practicable, the department must distribute purchases equitably among qualified suppliers and use small and minority businesses, women's business enterprises, and labor surplus area firms when possible. All contractors/suppliers shall be checked in SAM.gov to ensure they are free of exclusions.

II. **Simplified Acquisition** (greater than $10,000 - $250,000*): Purchases exceeding $10,000 to $250,000 are procured via a minimum of three (3) written quotes.

III. **Formal Solicitations (Invitation for Bids, Request for Proposals)** (greater than $250,000): All requirements exceeding $250,000 are acquired through this process, with the exception of sole source and emergency procurements, as defined in the Procurement Procedures Manual.

**** Note:** Quotations solicited at the Department/Division level shall not exceed $250,000 unless a Sole Source or a time sensitive emergency applies. The Procurement Division reserves the right to solicit or re-solicit all informal requirements to ensure selections are in the County's best interest.*

APPROVED BY ORANGE
COUNTY BOARD OF COUNTY
COMMISSIONERS

BCC Mtg. Date: August 24, 2021

RESOLUTION

of the

ORANGE COUNTY BOARD OF COUNTY COMMISSIONERS

regarding

USE OF THE FEDERAL SIMPLIFIED ACQUISITION THRESHOLD WHEN MAKING PROCUREMENTS WITH FEDERAL FINANCIAL ASSISTANCE

Resolution No. 2021-M-29

WHEREAS, pursuant to 2 CFR §200.40, **"Federal Financial Assistance,"** means federal funds that non-Federal entities, such as Orange County, Florida (the **"County"**), receive or administer in the form of grants, cooperative agreements, non-cash contributions or donations of property (including donated surplus property), direct appropriations, food commodities, and other financial assistance (with limited exceptions); and

WHEREAS, in Fiscal Year 2019-2020, the County had an available budget of $416,806,049 in Federal Financial Assistance; and

WHEREAS, unless expressly permitted otherwise by the Federal Government, the County must comply with the *Federal Uniform Administrative Requirements, Cost Principles, and Audit Requirements for Federal Awards* as found in 2 CFR Part 200 (the **"Uniform Guidance"**) when making payments that in any part use Federal Financial Assistance[1]; and

WHEREAS, the Uniform Guidance, in part, requires that the County uses formal procurement methods when using Federal Financial Assistance to make procurements with values exceeding either: (1) the Federal **"Simplified Acquisition Threshold"** (as established below); or (2) a lower threshold for formal procurement established by the County; and

WHEREAS, 48 CFR § 2.101 establishes the Federal Simplified Acquisition Threshold, which is currently set to $250,000 but may be amended, from time to time, by the Federal Government; and

WHEREAS, through its adoption of Resolution No. 2019-M-30, the Orange County Board of County Commissioners (the **"Board"**) increased the County's mandatory bid amount, which serves as the County's own Simplified Acquisition Threshold, to $150,000; and

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[1] Unless such Federal Financial Assistance is being administered by the U.S. Department of Health and Human Services, at which point the County must instead use the Federal Uniform Administrative Requirements, Cost Principles, and Audit Requirements for HHS Awards as found in 45 CFR Part 75 which, for the purposes of this Resolution, has substantially the same requirements as 2 CFR Part 200.

WHEREAS, as Federal Financial Assistance often comes with inflexible program delivery and fund expenditure deadlines, procedural delays in making payments using such assistance that are not otherwise required by the Federal Government may unnecessarily lead to the County being unable to fully utilize such federal assistance within the timeframes provided; and

WHEREAS, the Board recognizes that formal procurement methods require more time and resources to complete than do informal procurement methods – such as the federally-compliant small purchase methods generally permitted by the Federal Government for procurements that fall under the Federal Simplified Acquisition Threshold; and

WHEREAS, failure by the County to timely utilize any portion of the Federal Financial Assistance it receives jeopardizes its ability to obtain such assistance in the future and may result in the County being required to return any unused federal assistance to the Federal Government; and

WHEREAS, as Resolution No. 2019-M-30 did not contain any exceptions to the County's mandatory bid amount based on a procurement's funding source, when making procurements with Federal Financial Assistance, the County currently must comply with its $150,000 mandatory bid threshold instead of benefitting from the time-saving efficiencies that could be gained by using the Federal Government's higher Federal Simplified Acquisition Threshold (currently, $250,000); and

WHEREAS, it is the Board's desire that the County expend the Federal Financial Assistance it receives in the most efficient and effective manner possible to ensure that it timely meets its obligations under such Federal Financial Assistance while still being financially responsible and compliant with the Uniform Guidance; and

WHEREAS, the Board therefore finds that adopting the Federal Government's Simplified Acquisition Threshold for the limited purpose of procurements made with Federal Financial Assistance will best serve the interests of the Orange County community and the general public welfare.

NOW THEREFORE, BE IT RESOLVED BY THE BOARD OF COUNTY COMMISSIONERS OF ORANGE COUNTY:

Section 1. The above recitals are hereby incorporated and are to be considered binding.

Section 2.

(1) For the limited purpose of procurements made by the County using Federal Financial Assistance, whether in whole or in part, the Board hereby sets the County's mandatory bid threshold to match the Federal Government's Simplified Acquisition Threshold. This action shall include any future

amendments or adjustments made to the Federal Simplified Acquisition Threshold by the Federal Government. For reference purposes only, the current Federal Simplified Acquisition Threshold is $250,000.

(2) For all other procurements made by the County, the mandatory bid threshold as adopted in Resolution 2019-M-30 remains in full force and effect.

Section 3. This Resolution shall be retroactively effective as of March 3, 2021.

ADOPTED this 24th day of August, 2021.

ORANGE COUNTY, FLORIDA
By: Orange County Board of County Commissioners

By: _____
for Jerry L. Demings
Orange County Mayor

ATTEST: Phil Diamond, CPA, County Comptroller
As Clerk of the Board of County Commissioners

BY: _____
Deputy Clerk

APPROVED BY ORANGE
COUNTY BOARD OF COUNTY
COMMISSIONERS

BCC Mtg. Date: August 06, 2019

RESOLUTION

of the

ORANGE COUNTY BOARD OF COUNTY COMMISSIONERS

regarding

INCREASING ORANGE COUNTY, FLORIDA'S MANDATORY BID THRESHOLD

Resolution No. 2019-M-30

WHEREAS, the Orange County Board of County Commissioners (the "Board") adopted the Article III of Chapter 17 of the Orange County Code (the "Orange County Procurement Ordinance") with the purpose of placing Orange County's (the "County") purchasing function under a centralized system that would enable the County to:

(1) Establish policies governing all purchases and contracts, encouraging and promoting fair and equal opportunity for all persons doing business with the County;

(2) Obtain goods and services of satisfactory quality and quantity at reasonable costs for the County;

(3) Permit the continued development of procurement policies and procedures of purchasing and contracts;

(4) Foster effective broad-based competition within the free enterprise system; and

(5) Provide safeguards for the maintenance of a procurement system of quality and integrity; and

WHEREAS, Section 17-309, Orange County Code, provides that the procurement of all goods, material, equipment, services, and combinations of goods and services made by, or on behalf of, the Board in an amount equal to, or in excess of, the mandatory bid amount shall be awarded through a formal competitive solicitation process; and

WHEREAS, Section 17-287, Orange County Code, states that the mandatory bid amount shall be established as policy by the Board; and

WHEREAS, the County's current mandatory bid amount is set at thirty-five thousand dollars ($35,000) and has not been significantly changed since the adoption of the Orange County Procurement Ordinance in 1992; and

WHEREAS, because formal competitive solicitations require extensive business resources, coordination, analysis, and documentation, the formal competitive solicitation process is intended to be reserved for high-value and high-risk procurements; and

WHEREAS, informal competitive quote-based solicitations are intended to be reserved for low-value, low-risk, day-to-day operational procurements because such an informal procurement process: creates a simplified experience for the business community; utilizes moderate business and Orange County staff resources; and provides for expedited coordination, analysis, and documentation; and

WHEREAS, Orange County will be better able to attract qualified businesses, including small, minority, and women owned businesses, by providing a simplified, informal competitive quote-based process for low-value, low-risk, day-to-day procurements; and

WHEREAS, the Procurement Division surveyed the Federal Government, Manatee County, Miami-Dade County, Palm Beach County, Pinellas County, the City of Orlando, Broward County, and Hillsborough County and found that the average of those eight (8) government's mandatory bid thresholds was just under one hundred and forty four thousand dollars ($144,000) with the three (3) highest mandatory bid thresholds at two hundred and fifty thousand dollars ($250,000) and the two (2) lowest at fifty thousand dollars ($50,000);

WHEREAS, based on the Procurement Division's survey, Orange County's current mandatory bid threshold is seventy-three percent (73%) lower than the average of those government agencies surveyed; and

WHEREAS, the Board wishes to modernize the County's mandatory bid threshold by bringing it in line with those of similarly-sized and similarly-situated local governments; and

WHEREAS, the Board intends to ensure that the County's mandatory bid threshold remains in sync with the current economic climate by tying it to the Consumer Price Index (CPI) for urban consumers.

NOW THEREFORE, BE IT RESOLVED BY THE BOARD OF COUNTY COMMISSIONERS OF ORANGE COUNTY:

Section 1. The above recitals are hereby incorporated and are to be considered binding.

Section 2. The Board hereby increases the mandatory bid threshold for Orange County to one hundred and fifty thousand dollars ($150,000).

Section 3. The Board additionally:

(1) Directs staff to review the mandatory bid threshold in the year 2025 and to adjust it for inflation based on the CPI for urban consumers, rounded to the nearest thousand; and

(2) Authorizes staff to review and adjust the mandatory bid threshold for inflation based on the CPI for urban consumers, rounded to the nearest thousand, every five years thereafter.

Section 4. The effective date of this Resolution shall be October 1, 2019.

ADOPTED this ___ day of AUG 06 2019, 2019.

ORANGE COUNTY, FLORIDA
By: Orange County Board of County Commissioners

By: Byron W. Brooks
for Jerry L. Demings
Orange County Mayor

ATTEST: Phil Diamond, CPA, County Comptroller
As Clerk of the Board of County Commissioners

BY: Katie Smith
Deputy Clerk